UNITED NATIONS SECURITY COUNCIL

Agenda: The Situation in the Middle East

Letter from the Executive Board

The situation in the Middle East remains one of the most complex questions before the United Nations Security Council, involving the interaction of territorial disputes, competing claims to sovereignty, prolonged occupation, armed conflict, regional security competition, humanitarian emergencies and the credibility of international law. The persistence of these crises cannot be understood through individual military confrontations alone. They are sustained by unresolved political settlements, fragmented security arrangements, external military involvement, contested interpretations of international obligations and the limited capacity of international institutions to ensure compliance with their decisions.

The Council's responsibility under the Charter of the United Nations is to maintain international peace and security, including by determining the existence of threats to peace, calling upon parties to comply with their obligations, facilitating peaceful settlement and, where necessary, adopting measures under Chapter VII. However, the exercise of this responsibility requires a distinction between the legal authority of the Council, the obligations independently binding upon states and parties to armed conflict, and the political feasibility of implementing a negotiated settlement. A ceasefire, for instance, may suspend active hostilities without resolving the underlying dispute over territory, political representation, security guarantees or the status of occupied populations. Similarly, humanitarian access may alleviate immediate civilian suffering without addressing the conditions that repeatedly generate displacement and insecurity.

Delegates are therefore expected to approach this agenda as a question of international peace and security rather than as a collection of disconnected regional disputes. The central task is to identify the legal and political causes of instability, determine the obligations applicable to the actors involved, assess the effectiveness of existing Security Council mechanisms and formulate measures that are both legally defensible and operationally implementable. A credible outcome must account for the security concerns of states, the rights of civilian populations, the obligations of occupying powers and other parties to armed conflict, the role of regional organisations and the practical limitations of enforcement.

The Executive Board encourages delegates to distinguish established facts from allegations, binding legal obligations from political commitments, and immediate crisis management from long-term conflict resolution. The quality of deliberation will depend not merely on the positions adopted by individual states, but on their ability to reconcile competing interests with the Charter framework and develop a coherent approach to regional stability.

I. Understanding the Agenda and Its Scope

The agenda item “The Situation in the Middle East” is a broad Security Council framework covering interconnected threats to international peace and security across the region. It is distinct from the narrower agenda item “The Situation in the Middle East, including the Palestinian Question,” although the two overlap substantially. The former permits

consideration of regional security developments, interstate hostilities, territorial disputes, foreign military deployments, nuclear proliferation concerns, peacekeeping arrangements and the implementation of relevant Security Council resolutions.

The principal challenge is that the region's conflicts operate through interconnected security systems. Developments in Gaza affect the security calculations of Israel, Lebanon and Iran. Instability in Syria creates opportunities for armed groups, external military intervention and disputes over territorial control. Maritime insecurity in the Red Sea affects international shipping and commercial supply chains. Nuclear tensions involving Iran influence regional deterrence calculations and the risk of direct interstate confrontation. These connections do not mean that all conflicts share the same causes or that responsibility for separate incidents can be attributed collectively to every actor in the region. They demonstrate why an exclusively country-by-country approach may be insufficient to address the wider security implications.

For the purposes of this agenda, delegates should distinguish between three levels of analysis. The first concerns immediate threats, including active hostilities, attacks against civilians, cross-border strikes and restrictions on humanitarian operations. The second concerns structural sources of insecurity, including unresolved territorial claims, occupation, the proliferation of non-state armed groups, competing regional alliances and weak state institutions. The third concerns the international mechanisms available to prevent escalation, enforce existing obligations, facilitate negotiations and establish conditions for durable political settlements.

The Council must also distinguish the existence of a conflict from the legal classification of particular conduct within it. An armed attack, an occupation, a violation of a ceasefire, an alleged war crime and a threat to international peace and security are legally distinct concepts. They may overlap, but each requires its own applicable legal test. Security Council deliberations are more effective when resolutions identify the specific conduct to be addressed, the parties responsible for compliance, the monitoring mechanism and the consequences of non-compliance.

II. Historical Foundations of Regional Instability

2.1 The dissolution of the Ottoman Empire and the emergence of territorial disputes

The contemporary political geography of the Middle East was shaped by the dissolution of the Ottoman Empire following the First World War, the establishment of British and French mandates, and the subsequent emergence of independent states. Mandate administration, externally negotiated borders and competing national movements contributed to disputes over sovereignty, political representation and territorial control. However, the region's present conflicts cannot be reduced to colonial boundary-making alone. Domestic political developments, interstate wars, ideological competition, resource distribution and later military interventions have also shaped regional instability.

The establishment of Israel in 1948 and the ensuing Arab-Israeli war produced mass displacement and a continuing dispute over Palestinian self-determination, statehood, refugees and territorial claims. The 1967 Six-Day War resulted in Israel's occupation of the West Bank, including East Jerusalem, the Gaza Strip, the Sinai Peninsula and the Golan

Heights. Although Israel subsequently withdrew from the Sinai Peninsula under the Egypt-Israel peace framework, the status of the occupied Palestinian territory and the Golan Heights remains central to regional diplomacy.

Security Council resolution 242 (1967) established principles concerning the withdrawal of Israeli armed forces from territories occupied in the conflict and the termination of belligerency, alongside the right of every state in the region to live within secure and recognised boundaries. Its interpretation, particularly regarding the territorial scope of withdrawal, has remained politically contested. Resolution 338 (1973), adopted following the October 1973 war, called for a ceasefire and the implementation of resolution 242.

These resolutions established an enduring framework for diplomatic negotiations. They did not, by themselves, resolve the disputes over Palestinian statehood, the status of Jerusalem, settlements, refugees, borders or security arrangements.

2.2 The Palestinian question and the limits of the peace process

The Oslo Accords of the 1990s established an interim framework for Palestinian self-government and negotiations between Israel and the Palestine Liberation Organization. They created the Palestinian Authority and introduced arrangements for the gradual transfer of certain governing responsibilities. However, the final-status issues, including Jerusalem, borders, settlements, refugees and security, remained unresolved.

The failure to establish a comprehensive final settlement, the expansion of Israeli settlements in the occupied West Bank, recurring violence, internal Palestinian political divisions and repeated breakdowns in negotiations have weakened confidence in the peace process. The division between the Palestinian Authority, which exercises limited self-government in parts of the West Bank, and Hamas, which became the de facto governing authority in Gaza, has further complicated the question of unified Palestinian political representation.

The Second Intifada, beginning in 2000, intensified Israeli-Palestinian violence and contributed to increasingly restrictive security measures. Israel's 2005 disengagement removed its settlements and permanent ground forces from within the Gaza Strip, but Israel retained substantial control over access, movement and other aspects of Gaza's external environment. The legal implications of that control have remained contested, while the United Nations and the International Committee of the Red Cross have continued to treat Gaza as part of the occupied Palestinian territory in their respective legal and institutional assessments.

The blockade and restrictions imposed on Gaza, recurrent armed confrontations and the deterioration of living conditions have created a prolonged humanitarian and security crisis. These circumstances form the background to the hostilities that intensified following the Hamas-led attacks against Israel on 7 October 2023 and the subsequent Israeli military campaign in Gaza.

2.3 Regionalisation of conflict after 2011

The Arab uprisings beginning in 2010 and 2011 produced significant political changes, but in several states they were followed by institutional breakdown, civil war or authoritarian consolidation. Syria descended into a prolonged armed conflict involving government forces, opposition groups, Kurdish-led forces, terrorist organisations and multiple external powers. Yemen's political transition collapsed into a conflict involving the internationally recognised government, the Houthi movement and other armed actors. Iraq continued to confront the consequences of institutional fragility, sectarian divisions and the territorial expansion of the Islamic State in Iraq and the Levant, commonly known as ISIL or Da'esh.

These conflicts created opportunities for regional powers to expand their influence through military operations, security partnerships, financial support and relationships with local armed groups. Iran developed relationships with Hezbollah in Lebanon and several armed groups operating in Iraq, Syria and Yemen. Israel increasingly treated the military entrenchment of Iran-aligned forces near its borders as a direct security threat. Saudi Arabia and other Gulf states pursued policies aimed at containing Iranian influence while also confronting threats to maritime routes and regional infrastructure.

The resulting regional security environment is characterised by overlapping conflicts in which local actors retain their own political objectives, even when supported by external states. The term “proxy conflict” can therefore be useful in describing certain relationships, but it should not be treated as proof that every armed group acts entirely under the control of its external supporter. The legal attribution of an armed group's conduct to a state requires evidence and the application of the relevant legal standard.

III. The Palestinian Question and the Crisis in Gaza

3.1 The escalation of hostilities

The attacks of 7 October 2023, led by Hamas and involving other Palestinian armed groups, included the killing of civilians and the taking of hostages. Israel subsequently launched a large-scale military campaign in Gaza, stating that its objectives included dismantling Hamas's military capabilities, preventing further attacks and securing the return of hostages. The campaign resulted in extensive destruction, mass displacement, the collapse or severe disruption of essential services and a prolonged humanitarian emergency.

The conflict raises several distinct legal questions. These include the prohibition on attacks against civilians, the prohibition on hostage-taking, the obligations governing the conduct of hostilities, the protection of medical facilities and humanitarian personnel, the treatment of detainees, the facilitation of humanitarian relief and the responsibilities associated with occupation.

The existence of a legitimate military objective does not remove the requirement to comply with international humanitarian law. Conversely, an allegation of unlawful conduct must be assessed by reference to the relevant facts and legal rules rather than inferred solely from the identity of the party involved. The prohibition on deliberately directing attacks against civilians applies to all parties. The principles of distinction, proportionality and precautions in attack govern the conduct of hostilities, while the prohibition on starvation of civilians as a method of warfare and the rules governing humanitarian relief impose additional constraints.

3.2 The humanitarian situation and the problem of sustained access

Gaza's humanitarian emergency involves the interdependence of food security, public health, shelter, sanitation, electricity, water supply and the operation of hospitals. Restrictions on commercial supplies and humanitarian deliveries can undermine the recovery of essential services even when the intensity of fighting decreases. Damage to roads, hospitals, water infrastructure and agricultural land can continue to affect civilian survival long after a ceasefire is announced.

As of October 2026, the ceasefire framework has improved certain aspects of humanitarian access, but the situation remains fragile. UNICEF warned on 16 October 2026 that progress in reducing acute malnutrition could be reversed by interruptions to commercial supplies. The agency also reported that large numbers of children remained displaced in unsafe shelters and that dietary diversity and living conditions continued to present serious concerns.

Humanitarian access should therefore be assessed through measurable indicators rather than general assurances. These include the number and geographic distribution of functioning crossings, the volume and regularity of aid deliveries, the ability of humanitarian personnel to move safely, the availability of fuel, the functioning of hospitals and water systems, and the extent to which civilians can return voluntarily to safe and habitable areas.

International humanitarian law requires parties to allow and facilitate rapid and unimpeded passage of impartial humanitarian relief for civilians in need, subject to the applicable legal conditions. Parties may retain legitimate inspection and security procedures, but these cannot be used to arbitrarily withhold essential relief. Where occupation law applies, the occupying power has additional obligations concerning the provision of food and medical supplies and the facilitation of relief schemes when the population is inadequately supplied.

The Council must consider how to move from episodic humanitarian access to predictable and sustained delivery. Humanitarian arrangements that depend on temporary political understandings, without reliable monitoring or procedures for resolving access disputes, remain vulnerable to interruption.

3.3 Ceasefire implementation and the post-conflict governance question

A ceasefire is an operational arrangement intended to reduce or end hostilities. It does not automatically resolve the political status of a territory, determine the future governing authority or establish a durable security architecture. Gaza therefore presents the Council with a transition problem: how to maintain a cessation of hostilities while creating credible arrangements for civilian administration, reconstruction, public security and political representation.

Security Council resolution 2803 (2025) and the associated Comprehensive Plan to End the Gaza Conflict have formed part of the framework discussed by the Council in 2026. The United Nations has continued to report on implementation, humanitarian conditions and the political arrangements envisaged under the plan. In August 2026, the Office of the United Nations Special Coordinator for the Middle East Peace Process described the ceasefire as fragile and noted continuing Israeli strikes and deterioration in the West Bank.

A durable post-conflict arrangement must address at least four issues. First, the governing authority must possess sufficient administrative capacity and public legitimacy to deliver essential services. Second, security arrangements must prevent renewed attacks without creating an indefinite vacuum of political accountability. Third, reconstruction resources must be distributed through transparent mechanisms capable of preventing diversion and corruption. Fourth, the future of Gaza must be considered in relation to Palestinian self-determination and the broader political settlement, rather than treated as an isolated administrative problem.

The Council must also determine how ceasefire violations will be recorded, investigated and addressed. Without agreed procedures for incident reporting, independent verification and dispute resolution, competing claims of violation can become grounds for renewed military action.

3.4 The West Bank and East Jerusalem

The West Bank and East Jerusalem remain integral to the wider Palestinian question. Settlement expansion, settler violence, demolitions, movement restrictions, military operations and the displacement of Palestinian communities contribute to deteriorating security conditions. The status of Jerusalem is particularly sensitive because of its religious significance, its political claims and the unresolved question of its status in a final settlement.

Security Council resolution 2334 (2016) reaffirmed that Israeli settlements in the Palestinian territory occupied since 1967, including East Jerusalem, have no legal validity and constitute a flagrant violation under international law. It called upon Israel to cease settlement activities and upon all states to distinguish, in their relevant dealings, between the territory of the State of Israel and the territories occupied since 1967.

The issue is not limited to the legality of individual settlements. Settlement expansion affects territorial contiguity, access to land and resources, demographic patterns and the practical viability of a negotiated two-state settlement. At the same time, attacks against Israeli civilians, indiscriminate violence and other violations must be addressed through the same insistence on legal accountability.

The Council must consider how to preserve the territorial and institutional conditions necessary for a political settlement while preventing the West Bank from becoming another arena of sustained armed confrontation.

IV. Israel, Lebanon and the Future of Border Security

4.1 The Israel-Hezbollah conflict

The Israel-Lebanon border has long been affected by the presence of Hezbollah, Israeli military operations and disputes concerning territorial control. Security Council resolution 1701 (2006), adopted following the 2006 war, called for a cessation of hostilities, the deployment of the Lebanese Armed Forces in southern Lebanon alongside the United Nations Interim Force in Lebanon, and the extension of the Lebanese government's authority throughout its territory. It also called for the disarmament of armed groups in Lebanon in accordance with the relevant international framework and for the area between the Blue Line

and the Litani River to be free of armed personnel, assets and weapons other than those of the Lebanese government and UNIFIL.

Resolution 1559 (2004) had earlier called for the withdrawal of foreign forces from Lebanon, the disbanding and disarmament of all Lebanese and non-Lebanese militias, and the extension of government control over all Lebanese territory.

The central difficulty is the gap between these obligations and the actual distribution of military power. Hezbollah possesses an independent armed capability that has complicated the Lebanese state's exclusive authority over the use of force. Israel, for its part, has conducted military operations and maintained positions in Lebanese territory, citing security concerns. The continued presence of armed forces and competing security claims increases the risk that local incidents will trigger wider escalation.

The legal analysis requires separate consideration of Lebanon's sovereignty, Israel's right to protect its population within the limits of international law, the rules governing the use of force, and the obligations of all parties under international humanitarian law. A state's security concerns do not, by themselves, establish the legality of every military measure taken in response. Likewise, the presence of a non-state armed group does not remove the territorial state's rights under international law.

4.2 The UNIFIL mandate and the transition problem

UNIFIL has operated in southern Lebanon since 1978 and has played a role in monitoring hostilities, facilitating communication between the parties and supporting implementation of resolution 1701. Its presence cannot substitute for a political settlement or independently compel all parties to comply with Security Council decisions. Its effectiveness depends on the scope of its mandate, the cooperation of the parties, access to relevant areas and the capabilities available to the mission.

In August 2025, the Council adopted resolution 2790, extending UNIFIL's mandate for a final period ending on 31 December 2026 and directing an orderly drawdown and withdrawal. By October 2026, the future of the United Nations presence in southern Lebanon had become an urgent question. The Lebanese government sought an extension, while the Secretary-General's proposals for a continued United Nations presence remained under discussion. The prospect of withdrawing without an effective successor arrangement raised concerns over monitoring, deconfliction and the capacity of the Lebanese Armed Forces to assume additional responsibilities.

The Council must evaluate whether the existing mandate should be extended, modified or replaced by a more limited monitoring or assistance arrangement. Such a decision must consider the operational needs of peacekeepers, the consent and cooperation of the host state, the implementation of resolution 1701 and the risk of a security vacuum.

The withdrawal of a peacekeeping operation does not itself resolve the underlying security dispute. Equally, extending a mission without a clear political and operational strategy may preserve a presence without improving compliance. Delegates should therefore assess the proposed mission's objectives, reporting authority, freedom of movement, relationship with national security forces and procedures for responding to incidents.

V. Syria: Political Transition, Sovereignty and External Military Presence

5.1 The post-Assad transition

The fall of the government of Bashar al-Assad in December 2024 opened a new phase in Syria's political development. The country continues to confront the effects of prolonged conflict, institutional fragmentation, displacement, economic collapse and the proliferation of armed actors. The transitional authorities face the challenge of consolidating national institutions while establishing an inclusive political order capable of accommodating Syria's religious, ethnic and regional diversity.

A political transition requires more than the replacement of national leadership. It requires functioning institutions, a credible constitutional process, accountable security forces, the reintegration or disarmament of armed groups and mechanisms for addressing abuses committed during the conflict. If these processes are pursued without transparency or political inclusion, local grievances may become sources of renewed armed resistance.

The United Nations has continued to emphasise the importance of a credible and inclusive political transition, transitional justice, security sector reform, disarmament and reintegration, and social cohesion. Security Council deliberations in September and October 2026 have also highlighted the economic hardship confronting Syrian civilians and the continuing threat posed by ISIL.

The Council's challenge is to support Syrian sovereignty and political self-determination without treating the transitional authorities as exempt from international obligations. Assistance should strengthen national institutions and civilian protection while avoiding arrangements that entrench external control or exclude significant communities from political participation.

5.2 Israeli military activity and the Golan Heights

The Golan Heights has remained a major territorial dispute since Israel captured the area from Syria in 1967. Security Council resolution 497 (1981) declared Israel's decision to impose its laws, jurisdiction and administration in the occupied Syrian Golan null and void and without international legal effect. The resolution remains a central reference point in the international treatment of the territory.

Following the fall of the Assad government in December 2024, Israeli forces expanded their presence in areas beyond the longstanding disengagement lines. Syria has called for Israeli withdrawal to the positions that existed before the expansion, while Israel has described its military presence as a defensive measure against potential threats. The 1974 Agreement on Disengagement between Israeli and Syrian forces and the United Nations Disengagement Observer Force remain important components of the existing security framework.

In September 2026, United Nations reporting highlighted continued Israeli incursions into southern Syrian governorates and renewed calls for compliance with the 1974 agreement. Israel maintained that its deployment was intended to address security threats. These competing claims create a direct challenge for the Council: how to prevent attacks against

Israel while upholding Syria's sovereignty and territorial integrity and preserving the disengagement arrangements.

The legal question cannot be resolved merely by accepting a state's description of a deployment as defensive. The legality of the use of force must be assessed under the Charter, including the requirements of necessity and proportionality where self-defence is invoked. The presence of armed groups may create genuine security concerns, but it does not automatically authorise territorial acquisition or an indefinite military presence.

5.3 Internal fragmentation and the threat from ISIL

Syria's internal security challenges include tensions between the transitional authorities and local armed groups, disputes over the integration of Kurdish-led forces, intercommunal violence and the continuing risk posed by ISIL. These challenges interact with the question of central authority. A rapid attempt to impose security arrangements without credible political inclusion may generate resistance, while prolonged fragmentation can create space for terrorist networks to reorganise.

The Council should distinguish counterterrorism operations from broader political and territorial disputes. ISIL is a terrorist organisation, and measures directed against it must comply with the applicable rules of international law. Counterterrorism cannot provide an unrestricted justification for attacks against civilians, arbitrary detention or violations of sovereignty.

A sustainable approach requires intelligence cooperation, border security, the management of detention facilities and displaced-person camps, the prevention of terrorist financing, and rehabilitation or prosecution arrangements consistent with applicable law. The Council must also consider the security implications of transferring responsibility for detention and camp administration to institutions whose capacity and accountability may remain uncertain.

VI. Iran, Nuclear Proliferation and Regional Deterrence

6.1 The nuclear issue and the erosion of diplomatic mechanisms

Iran's nuclear programme has remained a major source of tension between Tehran and several Western states. The dispute concerns the scope of Iran's nuclear activities, enrichment levels, verification, safeguards obligations and the relationship between nuclear restrictions and sanctions relief. Iran has maintained that its programme is peaceful, while other states have raised concerns about the possibility of weapons-related capability and the reduced transparency of certain activities.

The Joint Comprehensive Plan of Action, concluded in 2015 between Iran and the E3/EU+3, established restrictions on Iran's nuclear programme in exchange for sanctions relief and created a verification framework involving the International Atomic Energy Agency. Security Council resolution 2231 (2015) endorsed the agreement and established the associated United Nations framework.

The agreement's implementation deteriorated after the United States withdrew from it in 2018 and reimposed sanctions. Iran subsequently expanded nuclear activities beyond the

limits specified in the agreement, while disputes over compliance, verification and the sequencing of reciprocal obligations undermined efforts to restore the arrangement.

By 2026, the dispute had become more dangerous because diplomacy was taking place alongside direct military confrontation. The United States and Israel had conducted military operations against Iran earlier in the year, and negotiations remained stalled amid disagreements over proposals to limit further escalation. In September 2026, Russia and China vetoed a Security Council resolution that would have extended the mandate for independent monitoring of international sanctions on Iran, following renewed disputes over the status of sanctions and the nuclear agreement.

These developments expose a serious institutional problem. Sanctions are only as effective as the legal clarity, monitoring capacity and political coordination underpinning them. Where states disagree on whether sanctions remain in force, whether the relevant triggering procedures were lawfully invoked, or whether monitoring arrangements should continue, enforcement becomes less predictable and the Council's authority is weakened.

6.2 Sanctions, verification and the use of force

The Council must distinguish sanctions enforcement from the legality of military action. A state cannot establish the legality of a use of force merely by alleging that another state has violated nuclear restrictions or failed to comply with a diplomatic agreement. Any resort to force must independently satisfy the Charter framework. Similarly, economic sanctions must be assessed against the legal instrument authorising them, the applicable humanitarian considerations and the scope of the obligations imposed.

A durable nuclear arrangement requires a verification system capable of establishing whether declared nuclear material and facilities are being used consistently with safeguards obligations. Verification must also address access to relevant facilities, the continuity of monitoring and the consequences of unresolved discrepancies. Political assurances cannot replace technical verification, while technical monitoring cannot by itself resolve the political dispute over security guarantees and sanctions relief.

The Council must consider how to restore an agreed monitoring framework, preserve channels for crisis communication and reduce the risk that disputes over nuclear activity trigger further military escalation. The objective should be to create a process in which compliance can be assessed through evidence and established procedures rather than through unilateral assertions.

6.3 Regional deterrence and the danger of miscalculation

The confrontation involving Iran, Israel and the United States has implications beyond the immediate parties. Military exchanges can affect Gulf states, Iraq, Syria, Lebanon and maritime routes. Attacks on energy infrastructure, ports, communications systems or shipping could create economic disruption far beyond the geographic area of hostilities.

Deterrence depends partly on the belief that an adversary understands the limits of a state's response. In an environment of indirect attacks, cyber operations, armed groups and competing intelligence assessments, those limits may become unclear. A state may attribute

an attack to another state without sufficient evidence of direct responsibility, or may respond to a limited incident in a manner that escalates beyond the original dispute.

The Council should therefore consider regional hotlines, incident notification mechanisms, maritime deconfliction, safeguards against attacks on nuclear facilities and essential civilian infrastructure, and procedures for independently examining allegations of cross-border attacks. These measures do not require agreement on every underlying political question. They can reduce the probability that miscalculation produces a wider war.

VII. Yemen and the Security of International Maritime Routes

7.1 The conflict in Yemen

Yemen's conflict emerged from the collapse of its political transition following the 2011 uprising and the subsequent expansion of the Houthi movement, which took control of Sana'a in 2014. The intervention of a Saudi-led coalition in 2015 internationalised the conflict, while the involvement of regional actors, the fragmentation of Yemeni political institutions and the presence of terrorist organisations complicated efforts to establish a durable settlement.

The conflict has involved multiple parties with distinct objectives, including the internationally recognised government, the Houthis, southern separatist actors and other armed groups. The resulting fragmentation has weakened state institutions, undermined public services and contributed to prolonged humanitarian suffering.

The United Nations has pursued negotiations and confidence-building measures aimed at reducing hostilities, improving humanitarian access and establishing a political process. However, local political divisions, disputes over revenue distribution, control of ports, security arrangements and the relationship between national and regional actors continue to obstruct a comprehensive settlement.

The Council must distinguish between the immediate objective of preventing renewed hostilities and the longer-term requirement of establishing a political settlement that can be implemented by the parties themselves. A ceasefire that does not address the distribution of political authority, the status of armed formations and the economic foundations of the conflict may postpone rather than resolve instability.

7.2 Maritime security in the Red Sea and the Gulf of Aden

The Red Sea, the Bab el-Mandeb Strait and the Gulf of Aden form an important maritime corridor linking the Indian Ocean with the Suez Canal and the Mediterranean. Disruption in these waters affects international shipping, energy transportation, commercial insurance and supply chains connecting Europe, Asia and Africa.

Houthi attacks against commercial vessels and other maritime targets have raised concerns regarding freedom of navigation and the security of international commerce. The Houthis have linked certain attacks to the conflict in Gaza, although the legality of an attack must be assessed independently of the political justification asserted by its perpetrators.

The applicable legal framework includes the United Nations Convention on the Law of the Sea, the law of naval warfare where applicable, the prohibition on the use of force under Article 2(4) of the UN Charter and the rules governing self-defence under Article 51. The precise legal basis for a maritime security operation depends on its location, the status of the vessel, the conduct being addressed and the circumstances in which force is used.

Freedom of navigation does not give states an unrestricted right to conduct military operations in another state's territory. Equally, a state's sovereignty does not authorise it or an armed group operating from its territory to unlawfully attack foreign commercial vessels. These questions must be evaluated separately rather than treated as competing absolute rights.

Security Council resolutions 2722 (2024) and 2739 (2024) addressed Houthi attacks against merchant and commercial vessels in the Red Sea and demanded that such attacks cease. The Council's challenge is to translate these demands into a framework that combines maritime surveillance, diplomatic engagement, protection of civilian shipping and accountability for unlawful attacks.

An effective response should also distinguish between securing shipping lanes and resolving the political conditions that facilitate attacks. Naval deployments may deter particular incidents, but they cannot independently resolve Yemen's internal conflict or establish a durable regional settlement.

VIII. Iraq, Regional Armed Groups and the Problem of State Authority

Iraq remains strategically important because of its geographic position between Iran, Syria, Türkiye, Jordan, Kuwait and Saudi Arabia. The country has made substantial progress since the territorial defeat of ISIL in 2017, but continues to confront questions concerning the integration of armed formations, foreign military presence, political fragmentation and the relationship between national institutions and non-state actors.

The presence of armed groups with independent military capabilities can complicate the state's ability to exercise exclusive control over the use of force. Some groups operate within or alongside formal security structures, while others maintain separate command arrangements and relationships with external actors. This creates difficulties in determining responsibility for attacks, controlling weapons and preventing national territory from being used to conduct operations against neighbouring states.

The legal analysis requires care. The existence of an armed group within a state's territory does not automatically make every action of that group attributable to the state. Attribution depends on the applicable rules of international responsibility and the evidence concerning state direction, control, adoption or other legally relevant conduct. Separately, a state may incur responsibility where its own internationally wrongful acts or omissions satisfy the relevant legal requirements.

The Council should consider measures that strengthen Iraqi institutional capacity, improve cross-border security cooperation, prevent terrorist financing and support the lawful integration or disarmament of armed groups. These measures should preserve Iraq's

sovereignty while ensuring that its territory is not used as a platform for unlawful attacks against other states.

A wider regional approach is also necessary. The movement of weapons, personnel and financing across borders means that measures confined to a single state may be insufficient. However, regional cooperation must operate through clearly defined legal arrangements and should not become a basis for unilateral intervention or the imposition of external political control.

IX. International Legal Framework Governing the Agenda

9.1 The United Nations Charter

The Charter establishes the primary legal framework for the Security Council's work.

Article 1 identifies the maintenance of international peace and security as a principal purpose of the United Nations. Article 2(3) requires members to settle their international disputes by peaceful means, while Article 2(4) prohibits the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the purposes of the United Nations.

Article 2(7) limits United Nations intervention in matters essentially within the domestic jurisdiction of states, subject to the enforcement measures provided under Chapter VII. It should not be interpreted as a blanket exemption from international obligations or as preventing the Council from acting within its Charter authority when the relevant legal conditions are met.

Article 24 places primary responsibility for the maintenance of international peace and security upon the Security Council. Article 25 requires UN members to accept and carry out the Council's decisions in accordance with the Charter. Article 27 establishes the voting framework for substantive decisions, including the role of the permanent members.

Article 33 encourages parties to disputes likely to endanger international peace and security to seek solutions through negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, regional arrangements or other peaceful means of their choice.

Under Article 39, the Council determines the existence of a threat to the peace, breach of the peace or act of aggression and makes recommendations or decides what measures shall be taken. Article 40 permits provisional measures intended to prevent aggravation of a situation, while Article 41 authorises measures not involving the use of armed force. Article 42 provides for action by air, sea or land forces where the Council considers Article 41 measures inadequate or inadequate to prove effective within the Charter framework.

These provisions demonstrate that the Council has a range of responses between issuing political statements and authorising coercive action. The appropriate measure depends on the nature of the threat, the available evidence, the conduct of the parties and the prospects for implementation.

9.2 International humanitarian law

International humanitarian law governs the conduct of parties during armed conflict and seeks to limit its effects, particularly on civilians and persons who are no longer participating in hostilities.

The four Geneva Conventions of 1949 form the core of this framework. The Fourth Geneva Convention addresses the protection of civilians in time of war, including in occupied territory. Common Article 3 establishes minimum protections in non-international armed conflicts. Additional Protocols I and II further develop protections and rules applicable to international and certain non-international armed conflicts, subject to their respective applicability and the treaty obligations of the parties.

The principle of distinction requires parties to distinguish between civilians and combatants, and between civilian objects and military objectives. The principle of proportionality prohibits attacks expected to cause incidental civilian harm excessive in relation to the concrete and direct military advantage anticipated. The obligation to take precautions requires parties to take feasible measures to avoid or minimise civilian harm.

The prohibition on collective punishment, the protection of medical units, the prohibition on hostage-taking and the obligation to treat persons in custody humanely are also relevant to the regional conflicts under consideration.

The Security Council should not treat international humanitarian law as a reciprocal arrangement under which one party's violations release the other from its obligations. The applicable rules bind parties independently of whether opposing parties comply.

9.3 Occupation, territorial acquisition and self-determination

The law of occupation applies where the relevant factual conditions of effective foreign control over territory are met. Under Article 42 of the 1907 Hague Regulations, territory is considered occupied when it is actually placed under the authority